
Journal

1981 CLC 548

Court

LAHORE HIGH COURT

Date

1981-02-10

Appeal No.

TRANSFER APPLICATION NO. 382-C OF 1980

Judge

MUHAMMAD ILYAS

Parties

ROHIL AKHTAR—PETITIONER VERSUS GULISTAN KHAN—RESPONDENT

Lawyers

MUHAMMAD SHARIF CHAUHAN FOR PETITIONER. CH, MUHAMMAD HANIF FOR RESPONDENT.

Statutes

WEST PAKISTAN FAMILY COURTS ACT (XXXV OF 1964) - S. 25-A CONSTITUTION OF PAKISTAN (1973) - ARTICLE 175

Judgment

Judgment The petitioner, Mst. Rohil Akhtar, is the wife of the respondent, Gulistan Khan. She has filed a suit for dissolution of marriage and the same is pending before a Family Court of Lahore. On the other hand, the respondent has instituted a suit for restitution of conjugal rights which is being heard by a Family Court of Abbottabad. - The prayer made by Mst. Rohil Akhtar in the instant petition is that the suit brought by the respondent may be transferred from the Family Court of Abbottabad to the aforesaid Family Court of Lahore so that his suit may be heard and decided alongwith the suit .filed by her.

2. When the petition in hand came up before me for arguments I asked the learned counsel for the parties that since the territorial jurisdiction of this Court did not extend beyond the Province of the Punjab and the Court which is seized of the respondent's suit is located in another Province, namely, North-West Frontier Province, did this Court have the jurisdiction to transfer that suit? The reply of learned counsel for the respondent to my query was in the negative. It was, however, urged by learned counsel for the petitioner that I could order transfer of the respondent's suit. The only provision of law relied upon by him in support of his argument was section 25-A of the West Pakistan Family Courts Act, 1964, hereinafter referred to as the said Act, which reads as follows "25-A. Transfer of cases.—Notwithstanding anything contained in any law High Court may either on the application of any party or of its own accord, by an order in writing— T * transfer , any suit or proceeding under this Act from one Family Court to another Family Court in the same district or from a Family Court of one district to a Family Court of another district ; and (b) transfer any appeal or proceeding under this Act from the District Court of one district to the District Court of another district.

(2) A District Court may, either on the application of any party or of its own accord, by an order in writing, transfer any suit or proceeding under this Act from one Family Court to another Family Court in a district or to itself and dispose it of as a Family Court.

(3) Any Court to which a suit, appeal or proceeding is transferred under the preceding subsections, shall, notwithstanding anything contained in this Act, have the jurisdiction to dispose it of in the manner as if it were instituted or filed before it." .

The submission made by learned counsel for the petitioner was that since in section 25-A of the said Act it has not been laid down that the suit pending before a Family Court of one Province cannot be tranferred to the Family Court of another Province, this Court is competent to transfer the respondent's suit from the aforementioned Family Court of the Province of North-West Frontier to the Family Court of the Province of the Punjab which is seized of the suit brought by the petitioner.

3. Section 25-A of the said Act empowers a High Court to transfer a suit from one Family Court to another Family Court in the same District or from a Family Court in one District to a Family Court of another District. The High Court referred to in section 25- A is obviously, the High Court the territorial jurisdiction whereof extends to tbe District in which the suit sought to be transferred is pending. Section 25-A does not contain a provision allowing a High Court to . transfer a suit from a Family Court of one Province to the Family Court of another Province. Such a provision could not possibly be made in the said Act which is a Provincial law. I am, therefore, unable to agree with the learned counsel for the petitioner that under section 25-A of the said Act, this Court can withdraw a suit from a Family Court of another ,Province and entrust the same to a Family Court of the Province of the Punjab.

4. Article 175 of the Constitution contains provisions relating to establishment and jurisdiction of Courts, It is to the following effect :— “175.—*(1) There shall be a Supreme Court of Pakistan, a High Court for each Province and such other Courts as may be established by law.

(2) No Court shall have any jurisdiction save as is or may be conferred on it by the Constitution or by or under any law.

(3) The Judiciary shall be separated progressively from Executive within five years from the commencing day.” It is evident from clause (1) of. Article 175 of the Constitution that a High Court has jurisdiction within the territorial limits of the Province for which it is constituted. According to clause (2) of Article 175 a High Court can exercise jurisdiction beyond the aforesaid limits if such jurisdiction is conferred on it by the. Constitution or by or under any law. Learned counsel for petitioner could not point out any provision of the Constitution or of any law authorising this Court to exercise jurisdiction in respect of any place or area in the North-West Frontier Province. To my knowledge, there is no such provision in the Constitution or any law. I am, therefore, clear in my mind that in view of the existing state of law this Court has jurisdiction in regard to a suit pending in another Province.

5. What emerges from the aforesaid discussion is that I have no jurisdiction to order the transfer of the respondent's suit from Abbottabad to Lahore. The petition in hand is, therefore, dismissed with no order as to CObtS.

' Petition dismissed.

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